

25PSCV04560 25PSCV04560

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C07%2F14%2F2026

Source SHA-256: 0d9401214c4e30024dd1fd7c57237a97a04f8d477005aa18b6ec17a4b0cc0298

Case Number: 25PSCV04560 Hearing Date: July 14, 2026 Dept: H

Hernandez v. Nguyen-Pham,
et al., Case No. 25PSCV04560

ORDER ON MOTION

TO BE RELIEVED AS COUNSEL

The hearing on Counsel for Plaintiff

Olga Hernandez's (i.e., Malek H. Shraibati) Motion to be Relieved as Counsel is
GRANTED.

Background

Plaintiff Olga Hernandez ("Plaintiff") allegedly sustained injuries and damages in a January 2, 2024 motor vehicle accident near Washington Ave and Garvey Ave in El Monte, CA 91731 ("subject accident") while she was riding a bicycle and was allegedly struck by Defendant Kathy Hien Nguyen-Pham ("Defendant").

On December 19, 2025, Plaintiff filed a complaint, asserting causes of action against Defendant and Does 1-20, inclusive, for: (1) General Negligence and (2) Motor Vehicle.

On April 8, 2026, Plaintiff filed a Case Management Statement in which she stated that she has not served Defendant the complaint and summons because "Defendant's policy limits tendered. Pending execution of closing document or a Motion to be Relieved." Plaintiff also stated that the case was settled, pending filing of Minor's Compromise for Gabriel James Villarreal.

On

April 20, 2026, Plaintiff filed a Notice of Settlement of Entire Case. On the same day, the Court continued the Order to Show Cause Re: Failure to File Proof of Service hearing and Case Management Conference to August 17, 2026. The Court noted that the docket did not reflect the filing of the Notice of Settlement.

On

June 16, 2026, Counsel for Plaintiff, Malek H. Shraibati ("Counsel") filed the operative motion to be relieved as Plaintiff's counsel.

On

June 22, 2026, the Court continued the Order to Show Cause Re: Dismissal (Settlement) hearing to July 14, 2026.

Legal

Standard

The

court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code of Civ. Proc., § 284(2).) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An

application to be relieved as counsel must be made on Judicial Council form MC-051 (Notice of Motion and Motion to be Relieved as Counsel - Civil) (Cal. Rules of Court, rule 3.1362(a)). The motion must be accompanied by a declaration using form MC-052 (Declaration), and a proposed order relieving counsel, prepared on form MC-053 (Proposed Order) (Cal. Rules of Court, rule 3.1362(e)). The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (Cal. Rules of Court, rule 3.1362(c), (e).)

Further,

the requisite forms must be served on the client and all other parties who have appeared in the case. (Cal. Rules of Court, rule 3.1362(d).) The court may

delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Court, rule 3.1362(e).) A motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

Discussion

Malek H. Shraibati of BD&J, PC seeks to be relieved as counsel of record for Plaintiff. Counsel declares that “[t]here has been a significant breakdown in the attorney-client relationship, which has significantly impeded counsel's ability to effectively prosecute this case and represent Plaintiffs interests. A voluntary substitution of attorney form could not be obtained from Plaintiff, who no longer responds to calls and/or mailings. To date, Plaintiff's counsel is unaware of any new counsel.” (Shraibati Decl., at pg. 1.) In his declaration RE: OSC RE: dismissal after settlement, Counsel stated that “subsequent to our office receiving the settlement release, there has been a breakdown in the attorney-client relationship.” (Shraibati Decl. RE: OSC, ¶ 4.)

Counsel

has stated a valid basis to be relieved as counsel. Furthermore, the MC-052 Form indicates that Plaintiff was served this instant motion and supporting documents via mail at her last known address, which was unable to be confirmed after (1) mailing the motion papers to the client's last known address, return receipt requested; (2) calling the client's last known telephone number or numbers; and (3) commissioning the services of a private investigator to conduct a search. The MC-053 form also indicated the following additional hearings which were set in this action at the time of the motion's filing: August 17, 2026 at 8:30 A.M., Department H, Pomona Courthouse South, 400 Civic Center Plaza, Pomona, California 91766 - Case Management Conference and Order to Show Cause RE: Failure to File Proof of Service. There is also a hearing for the OSC RE: Dismissal (Settlement) set to be heard on July 14, 2026, which was continued to this date after the filing of this motion. (Order, 6/22/26.)

Plaintiff

has not filed an opposition to this motion.

Accordingly,
the Court GRANTS the motion to be relieved as Plaintiff's counsel.